

25NNCV05302 25NNCV05302

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CB%2C07%2F10%2F2026

Source SHA-256: fa0b12016067e6505f70a91a1139adfbe0121228dd02917769fd2a04d8484488

Case Number: 25NNCV05302 Hearing Date: July 10, 2026 Dept: B

Hon. Victor Avila, Dept B

Request

for Default Judgment

CASE NO./NAME: 25NNCV05302/Pasaca Capital, Inc. v. Anjuan Pan,
et. al.

Ruling: Deny

NOTICE

The

Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at
or by telephone at (818) 260-8422.

TENTATIVE RULING

The request for default judgment is DENIED for the

following reasons:

Plaintiff has

failed to dismiss all parties against whom Default Judgment is not sought or to submit an application for entry of separate relief on grounds that the claims are severable. Defendant Dimitri J. Kaczmarek was not dismissed, nor listed for the request for entry of default judgment.

Additionally,

interest was improperly calculated. Interest may be awarded from the date of the balance until the date when default judgment is entered. Default was entered on October 29, 2025. However, interest was calculated from July 30, 2025 to May 29, 2026, which is past when default was entered.

Finally, punitive

damages are requested, but the declaration did not provide for evidence as to the Defendants' wealth.

NO LATER

THAN _____, 2026, PLAINTIFF IS TO SUBMIT A NEW DEFAULT JUDGMENT PACKAGE CORRECTING THESE DEFECTS. IF NO CORRECTED REQUEST IS FILED OR IF A SIMILARLY DEFICIENT REQUEST IS FILED, THE COURT WILL SET AN OSC FOR SANCTIONS IN THE AMOUNT OF UP TO \$1,001. NON-APPEARANCE CASE REVIEW RE: ENTRY OF DEFAULT JUDGMENT IS CONTINUED TO _____, 2026.

Plaintiff is ordered to give notice of this ruling.🔚🔚🔚

Hon. Victor Avila

Judge of the Superior Court